THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, CHANDIGARH

Item No. 8

CP (CAA) No. 16/Chd/Hry/2023
(2nd Motion)

Under Sections 230 to 232 of the Companies Act, 2013 read with Sections 66 and 52 of the Companies Act, 2013 and Rules 3 and 18 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF SCHEME OF ARRANGEMENT OF:

Star Wire (India) Electricity Pvt Ltd
PAN: AACCM6508J
CIN: U45201HR1998PTC104255
…Petitioner No. 1/Transferor Company No. 1

And

Star Wire (India) Biomass Pvt Ltd
PAN: AACCM7250R
CIN: U45201HR1998PTC104250
… Petitioner No. 2/Transferor Company No. 2

And

Mumet (India) Pvt Ltd
PAN: AADCM9856G
CIN: U28221HR1982PTC104253
… Petitioner No. 3/Transferor Company No. 3

And

Juhi Leasing And Finance Ltd
PAN: AAACJ1506D
CIN: U67120HR1983PLC105339
… Petitioner No. 4/Transferor Company No. 4

And

Interglobal Steels Pvt Ltd
PAN: AAACS0304A
CIN: U74899HR1981PTC104254

… Petitioner No. 5/Transferor Company No. 5

And

Sun Source Leafin Pvt Ltd
PAN: AAECS8985R
CIN: U51909HR1996PTC104252

… Petitioner No. 6/Transferor Company No. 6

And

Star Wire (India) Ltd
PAN: AAECS1124Q
CIN: U27109HR1963PLC105338

… Petitioner No. 7/Transferee Company

And

Star Wire (India) Laboratories Pvt Ltd
PAN: ABJCS7042R
CIN: U29200HR2022PTC107633

… Petitioner No. 8/Resulting Company

And

Hollysea Finvest Pvt Ltd
PAN: AAACH7102F
CIN: U51226DL1991PTC210273

…Non-Petitioner /Transferor Company No. 7

And

Abhinandan Trafin Pvt Ltd
PAN: AACCA2154N
CIN: U51109DL1996PTC210272

… Non-Petitioner /Transferor Company No. 8

Present :

Mr. Kartikeya Goel, Advocate for the Petitioner Companies.

1. This is a joint second motion Company Petition filed by the Petitioner Companies, namely; **Star Wire (India) Electricity Pvt Ltd, Star Wire (India)**

Biomass Pvt Ltd, Mumet (India) Pvt Ltd, Juhi Leasing and Finance Ltd, Interglobal Steels Pvt Ltd, Sun Source Leafin Pvt Ltd (for short hereinafter referred to as Petitioner/Transferor Companies No. 1 to 6, respectively), **Star Wire (India) Ltd** (for short hereinafter referred to as Petitioner/Transferee Company) and **Star Wire (India) Laboratories Pvt Ltd** (for short hereinafter referred to as Petitioner/Resulting Company); in relation to the **Composite Scheme of Arrangement amongst Star Wire (India) Electricity Pvt Ltd, Star Wire (India) Biomass Pvt Ltd, Mumet (India) Pvt Ltd, Juhi Leasing and Finance Ltd, Interglobal Steels Pvt Ltd, Sun Source Leafin Pvt Ltd, Hollysea Finvest Pvt Ltd, Abhinandan Trafin Pvt Ltd, Star Wire (India) Ltd and Star Wire (India) Laboratories Pvt Ltd** (under Sections 230-232 of Companies Act, 2013 (the Act), read with Sections 66 and 52 of the Companies Act, 2013, the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, the National Company Law Tribunal Rules, 2016, and other applicable provisions, if any.

2. In their Petition, the Petitioner Companies have prayed inter alia to issue directions in relation to publication in press to be effective and notices to be issued to the authorities concerned in relation to date of hearing of the Petition and calling for objections.

3. The first motion Application seeking directions for dispensing/convening the meetings of the Shareholders, Secured and Unsecured Creditors of the Applicant Companies was filed before this Tribunal vide Company Application No. CA

(CAA) No. 03/Chd/Hry of 2023 and based on such Application, necessary directions were issued on 16.02.2023. In the order dated 16.02.2023, the meetings of the Equity Shareholders of the Transferor Companies No. 1 to 6, the Transferee Company and the Resulting Company; (1%) Non-cumulative Redeemable Preference Shareholders and (4%) Non-cumulative Redeemable Preference Shareholders of the Transferee Company and Unsecured Creditors of the Transferor Companies No. 1 to 6 and the Resulting Company were dispensed with for the reasons mentioned in the aforesaid order. It was further directed to convene the separate meetings of Secured Creditors and Unsecured Creditors of the Transferee Company on 31.03.2023 through video conferencing with facility of remote e-voting. None of the Transferor Companies No. 1 to 6 and the Resulting Company has any Secured Creditor.

4. In compliance of the directions issued by this Tribunal, the Chairperson, Alternate Chairperson and Scrutinizer were also appointed and they have filed their reports which are as under:

Sl. No.	**Meeting of**	**Chairperson/Alternate Chairperson/Scrutinizer**	**Chairperson's Report**		**Date of meeting**
			Diary No. of Report	**Date of Report**	
1.	Secured Creditors of Applicant Transferee Company	Mr Manjit Singh Gill, Chairperson Mr Shivam Narang, Alternate Chairperson Ms Himanshi Verma, Scrutinizer	03357/2 dated 06.04.2023	03.04.2023	31.03.2023

2.	Unsecured Creditors of Applicant Transferee Company	Mr Manjit Singh Gill, Chairperson Mr Shivam Narang, Alternate Chairperson Ms Himanshi Verma, Scrutinizer	03357/3 dated 06.04.2023	03.04.2023	31.03.2023

As per Chairperson's Reports dated 31.03.2023, the composite Scheme of Arrangement was approved unanimously by the Secured Creditors and Unsecured Creditors of the Transferee Company present and voting.

5. The notice of hearing will be advertised in "Business Standard" (English) and "Business Standard" (Hindi), both in Delhi NCR Edition not less than 10 days before the next date fixed for hearing.

6. In addition to the above public notice, the Petitioner Companies shall serve the notice of the Petition on the following Authorities namely, a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; New Delhi; (b) the Registrar of Companies, NCT of Delhi and Haryana, New Delhi, (c) the Official Liquidator, Haryana, Chandigarh; (d) the Reserve Bank of India, New Delhi and (e) the Income Tax Department, in the respective circle/ward where these Companies are assessed or through the nodal office by mentioning the PAN number of the Petitioner Companies along with a copy of this petition by speed post immediately.

7. The Petitioner Companies shall at least 7 days before the date of hearing of the Petition file an affidavit of service regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to

whom notice has been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The Petitioner Companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

8. The next date of hearing of the petition shall be on 19.07.2023 for the consideration of the approval of the scheme as contemplated amongst the Petitioner Companies.

9. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

Sd/-
(Subrata Kumar Dash)
Member (Technical)

Sd/-
(Harnam Singh Thakur)
Member (Judicial)

April 19, 2023
VN